

15. 9:00 AM CASE NUMBER: MSC20-01624
CASE NAME: RAFAY VS FCA US, LLC
*HEARING ON MOTION IN RE: ATTORNEYS' FEES, COSTS, AND EXPENSES
FILED BY: RAFAY, RAYAN
TENTATIVE RULING:

The Court, *sua sponte*, continues this matter to **June 15, 2026, 9:00 am in Department 34.**

16. 9:00 AM CASE NUMBER: N23-1456
CASE NAME: PETITION OF: CURIA GLOBAL, INC.
*HEARING ON MOTION IN RE: AMEND JUDGMENT TO ADD VAXANIX BIO LTD. AND VAXANIX BIO ACQUISITION CORP. II AS JUDGMENT DEBTORS BY SUCCESSION
FILED BY:
TENTATIVE RULING:

Before the Court is Petitioner Curia Global, Inc.'s Motion to Amend Judgment to Add Vaxanix Bio Ltd. and Vaxanix Bio Acquisition Corp. II as Judgment Debtors by Succession.

Petitioner's Motion is **GRANTED** as set forth below.

Factual Background

Petitioner Curia Global, Inc. ("Curia") is a contract research and manufacturing organization that offers synthesis and contract manufacturing services for all phases of drug development. Respondent BryoLogyx, Inc. ("BryoLogyx") entered into a contract with Curia to provide such services. After a dispute arose between the parties, Curia initiated arbitration related to the dispute.

Curia ended up prevailing at the arbitration. Curia then moved to have the Court confirm the arbitration award. The Court confirmed the arbitration award. Curia now moves to amend the judgment to add Vaxanix Bio Ltd. ("Bio") and Vaxanix Bio Acquisition Corp. II ("Acquisition") (collectively the "Vaxanix Entities") due to the merger of BryoLogyx with Acquisition.

On or about January 28, 2024, BryoLogyx entered into an "Agreement and Plan of Merger" with Bio and Acquisition. (Tilghman Decl. Ex. A-6.) According to the Merger Agreement, the "[Bio], [Acquisition] and [BryoLogyx] intend to effect a merger of [BryoLogyx] with and into [Acquisition]..." (*Id.* at Recitals A.) The pertinent details of the merger will be discussed below.

The Vaxanix Entities object in part to the request. They argue that there is no basis to add Bio to the judgment but do concede that the Court can "amend the judgment to add only Vaxanix Acquisition [Corp. II]" to the judgment. Given that all parties agree that Acquisition ought to be added to the judgment, the Court will only address the arguments pertaining to the request to add Bio.

Standard

"Under [Code of Civil Procedure] section 187, the trial court is authorized to amend a judgment to add additional judgment debtors. ... As a general rule, 'a court may amend its judgment at any time so that the judgment will properly designate the real defendants....'" (*Danko v. O'Reilly* (2014) 232 Cal.App.4th 732, 735-36.) This sometimes occurs under an 'alter ego' theory. (*Ibid.*) "Modification of a